

Ram Soojan v. State of U.P. & Ors.

Allahabad High Court · Division Bench · 7 October 2013 · WRIT - C No. 55521 of 2013 · **Writ disposed; petitioner relegated to Clause 6.5 objection.**

HEADNOTE

A consumer aggrieved by an electricity bill is to object under Clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer. The High Court will not decide the bill on writ and disposes of the petition leaving that objection to be considered and decided in accordance with law.

FACTUAL SUMMARY

Petitioner Ram Soojan filed a writ petition in the Allahabad High Court challenging an electricity bill dated 11 September 2013. The respondents were the State of Uttar Pradesh through the Secretary and two others, including the Executive Engineer of the distribution licensee as respondent no. 3. After hearing counsel for both sides, the Court did not examine the bill's correctness and pointed the petitioner to the statutory objection route under the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer

HOLDING

A writ challenging an electricity bill is disposed by relegating the consumer to file an objection under Clause 6.5 before the Executive Engineer, who may consider and decide it in accordance with law. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer aggrieved by an electricity bill is to object under Clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer. The High Court will not decide the bill on writ and disposes of the petition leaving that objection to be considered and decided in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL DATED 11.09.2013

Merits of the challenged bill were not examined; the Court only pointed to the Clause 6.5 objection. ¶ 1